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CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO PRECLUDE

Tentative Ruling:

Moving party: Plaintiff Cong Liu, pro per

Responding party: Defendant Mascot International Logistics

Plaintiff Cong Liu (“Plaintiff”) alleges she purchased 27 display cabinets (“Cargo”) using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After the Cargo arrived in the United States, Defendant Mascot International Logistics, Inc. (“Defendant”) took custody of the Cargo and refused to release it, despite Plaintiff’s repeated demands. Plaintiff alleges that Defendant falsely misrepresented that Cargo was detained due to various carrier lien and warehouse lien to coerce Plaintiff into paying additional charges.

On November 18, 2025, Plaintiff filed the Complaint against Defendant, asserting causes of action for: (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit. Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, *Liu v. Mascot International Logistics, Inc.*, Case No. CVCO2401737 (“LJ Action”), which was voluntarily dismissed on November 18, 2025, the same date the instant action was filed. On April 28, 2026, the Court stayed all proceedings in the present case pending a ruling on Defendant’s Motion to Vacate Dismissal in the LJ Action. On May 20, 2026, the Court denied Defendant’s motion to vacate dismissal.

On June 4, 2026, Defendant filed a Cross-Complaint against Plaintiff, asserting causes of action for: (1) Equitable Indemnity; (2) Common Count – Services Rendered; and (3) Unjust Enrichment.

On August 24, 2026, Defendant filed a First Amended Cross-Complaint (“FACC”) without leave of Court. The FACC asserted the following causes of action against Plaintiff: (1) Declaratory Relief; (2) Equitable Indemnity; (3) Comparative Equitable Indemnity and Apportionment of Fault; (4) Judicial Foreclosure; and (5) Restitution based on Quasi Contract.

Before Defendant filed the FACC, Plaintiff filed the instant motion for an order requiring Defendant to provide a further account and bill of particulars under C.C.P. § 454. Plaintiff’s motion is based on Defendant’s second cause of action for common count.

Defendant opposes Plaintiff’s underlying motion, arguing that it is moot because the recently filed FACC removed the second cause of action for common count that forms the basis of Plaintiff’s motion for an order re: a further account and bill of particulars.

In reply, Plaintiff argues that the motion is not moot because the FACC should be stricken.

On August 26, 2026, Plaintiff filed a motion to strike the FACC, arguing that it was improperly filed because it is untimely and was filed without leave of Court. That same day, the

Court denied Plaintiff's ex parte application to advance the hearing on the motion to strike for lack of exigency.

Trial is not yet set.

ANALYSIS

Here, Plaintiff's motion is based on the initial Cross-Complaint's second cause of action for common count. Defendant contends that the motion is moot because it filed a First Amended Cross-Complaint ("FACC") that removed its second cause of action for common count, which is the cause of action upon which Plaintiff's motion is based.

The issue is that Plaintiff has moved to strike the FACC, arguing that it was untimely filed without leave of Court. Plaintiff's motion to strike is set to be heard on October 19, 2026. The Court denied Plaintiff's ex parte application to advance the hearing on the motion to strike due to lack of exigency.

However, the Court must first determine whether the FACC was properly filed, which requires the Court to hear the motion to strike before the instant motion. If the Court determines that the FACC was properly filed, then the FACC moots the current motion, and the Court need not proceed on its merits. **Accordingly, the Court continues the hearing on this motion to October 19, 2026, so it can be considered when the Court determines the validity of the FACC.**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION, SET ONE, NOS 1, 3, 4, 5, 6, 7, 8, AND 9

Tentative Ruling:

Moving party: Plaintiff Cong Liu, pro per

Responding party: Defendant Mascot International Logistics

Plaintiff Cong Liu ("Plaintiff") alleges she purchased 27 display cabinets ("Cargo") using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After the Cargo arrived in the United States, Defendant Mascot International Logistics, Inc. ("Defendant") took custody of the Cargo and refused to release it, despite Plaintiff's repeated demands. Plaintiff alleges that Defendant falsely misrepresented that Cargo was detained due to various carrier lien and warehouse lien to coerce Plaintiff into paying additional charges.

The operative Complaint, filed November 18, 2025, asserts causes of action for (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit. Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, *Liu v. Mascot International Logistics, Inc.*, Case No.